

MEMO

DATE: March 26th, 2024
TO: CPC Logistics Drivers assigned to Canadian Tire
FROM: Leanne Drummond, Business Development Manager
CPC Logistics, Inc.
SUBJECT: Dash Camera Information

The trucks that you can be assigned will soon be equipped with dash cameras. These cameras will record 20 second videos of serious incidents triggered by harsh driving events and safety hazards. These cameras cannot record and save video at any other time.

We understand that you may have questions about the cameras and how they function, so we have prepared this Common Questions document.

[What does the camera record?](#)

Outward and driver facing video 10 seconds before and 10 seconds after an event. An event such as: hard braking, g-force, sudden swerve, hard acceleration, excessive speed, collision, or if rollover and/or forward collision system is triggered. The camera can also detect safety hazards such as failure to wear seatbelt, smoking in the cab, distracted driving, following too closely. There are no audio recording capabilities activated, all videos will be without sound. The camera retains the video and only sends 20 seconds to Safety and Compliance when there is a harsh driving event or safety hazard. No other video can be viewed.

[Why are dash cameras being installed?](#)

Since you operate a commercial vehicle that is larger and heavier than other vehicles on the road, you can be deemed responsible for collisions even when you are not-at-fault. With dash cameras, we can provide the evidence to properly defend you and the fleet.

Over the past year, you have been evaluated on data we are receiving from trucks for example; hard brakes, stability control, speeding. All of these events have counted against your performance record. However, hard brakes for example, can occur when you must take action to avoid a collision when a motorist has pulled out in front of you. Having cameras will reward your performance record for exceptional driving skill.



Can the camera allow me to be watched in the cab at all times?

No. There is no ability to watch a driver live in the cab, force a recording, or request additional video. So, if you have no harsh driving events or safety hazards, no video can ever be retrieved of you.

What happens if I am involved in a collision, and I am at fault?

Then we know quickly and can properly value the extent of the impact and ensure that it is handled appropriately. Collision video brings the element of reality to the claim versus the often over exaggerated versions of the collision by third party lawyers resulting in unreasonable payouts. If you are at fault, you would be deemed at fault with or without a camera.

What does CPC expect as a result of the dash cameras?

We expect that we will have a lot of opportunities to congratulate and reward drivers for safe driving habits. We also expect that we will be able to use the cameras to improve your performance ratings by ensuring that every event is managed fairly and with consideration of commercial vehicle driving.

Will the cameras be used for discipline?

We already use many tools to evaluate your performance. The cameras are the best tool to ensure that you are being treated fairly for the experiences that you have in your workday. This may mean that you receive coaching and/or discipline for you on road performance when you trigger a recording. It is very important to keep in mind that you are already evaluated for your on the road driving habits. The cameras ensure that you do not receive blame for things outside your control. However, we are really looking forward to celebrating your safe driving habits and potentially life saving decisions and skills.

Does the camera give feedback?

The camera has the ability to alert you if you become distracted. If your eyes divert from the road, the camera will give an audible beep. This feature could potentially save you from injury. In the early stages of implementation, not all features will be turned on. We will be able to provide which features are active when we are closer to the rollout date.

Will I be able to see the videos recorded of me?

Yes. The cameras are a tool in part, to improve safety and performance. If there is an event that requires coaching, we will review the video with you. We will let you know if we have received a video of a an event during your operation.

What if I am not comfortable with the cameras?

If you have any questions or concerns about the camera, please bring them forward. We are here to discuss. We need to acknowledge that we live in a world where cameras are already present everywhere. Whenever you fuel up your vehicle, go grocery shopping, walk down the street, you are already on camera in many locations. With in public recordings, they are not controlled and can be saved and viewed by whoever has access. These dash cameras and 20 second videos are the most controlled and protected videos that will be taken of you in any given day.

The attached policy provides additional information on the cameras and how they will be used. Sign and return the policy by April 2nd, 2024.

Reach out to Lynda O'Grady with any dash camera questions l.ogrady@cpclogistics.ca.

Thank you,

Leanne Drummond
Business Development Manager
CPC Logistics Canada

CPC LOGISTICS CANADA, LTD.
ON-BOARD CAMERA POLICY AND EMPLOYEE ACKNOWLEDGEMENT

1. POLICY STATEMENT

This document sets out the policy of CPC Logistics Canada on the implementation and use of on-board cameras (Dash Cams) in the commercial motor vehicles of our customer Canadian Tire Company and that our employee-drivers will operate while in service to Canadian Tire Company.

2. PURPOSE AND SCOPE

The primary purpose of the Dash Cams are to assist in the protection and safety of persons and property, prevention or detection of inappropriate driving habits or conduct, defense of accident claims, and for ongoing driver instruction, training and coaching in safe driving and best practices.

3. GENERAL PRINCIPLES

The following general principles apply:

- a. SmartDrive Dash Cams will be installed as determined and when appropriate by Canadian Tire in Canadian Tire's vehicles, (i.e. trucks & tractors).
- b. The Dash Cams will have both inward, driver facing, and outward or forward facing capability.
- c. Dash Cams will be installed and utilized in a way that ensures that there is minimal intrusion of driver privacy.
- d. No images and information will be stored and retained except where a relevant incident or event has occurred.
- e. The Dash Cam is designed to record and save video of a triggering event or incident involving the vehicle such as a G-force event, hard braking, sudden swerve, hard acceleration, excessive speed, or collision, etc., or if the rollover prevention system and/or forward collision system is triggered.
- f. When a triggering event happens, the Dash Cam captures the 10 seconds before the triggering event and the 10 seconds after the triggering event, and then uploads that 20 second video clip to the central database at SmartDrive.
- g. The Dash Cam is also by design able to recognize Driver Inattentiveness by recognizing driver head position, closure of eyelids, and direction of eye gaze.
- h. The Dash Cam does not offer "live feed capability" and it cannot and will not be accessed covertly to monitor employees or just to check in and see what a driver is doing at given point in time. However, where an incident is captured that reveals inappropriate conduct, distracted driving and/or any other action or conduct that requires corrective attention and/or further training or coaching, CPC and Canadian Tire reserves the right to process and utilize that video as CPC and/or Canadian Tire reasonably determines. This may include grievance or disciplinary action with the employee-driver. Dash Cam footage may also be retained and used for future training and instruction of drivers in matters of safety and best practices.
- i. Access to retained images and information will be restricted to designated persons at both CPC and Canadian Tire who can gain access.

- j. Recorded images and information will be subject to appropriate security measures to safeguard against unauthorized access and use.

4. DASH CAM RECORDINGS ACCESS

Access to Dash Cam data will be approved on an individualized and case-by-case basis, and generally will be available to be accessed and reviewed by any of the following:

1. Safety Compliance Manager of CPC or Canadian Tire
2. Directors of CPC or Canadian Tire
3. Management of CPC or Canadian Tire
4. Legal Authorities such as the police or government agency investigators, etc.
5. Parties and their attorneys to litigation where footage is the subject to disclosure requirements under lawful discovery or subpoena request or court order.
6. Insurers and their claims agents or representatives of CPC or Canadian Tire.

5. POLICY MODIFICATION

This policy will be regularly reviewed and/or modified if there is a policy need or legislative change. This policy does form part of CPC employees' terms and conditions of employment with CPC and may be subject to change at the discretion of CPC.

6. EMPLOYEE DISCIPLINARY ACTION

Disciplinary action, up to and including termination of employment, will be taken by CPC against any employee who is involved in any of the following actions:

1. Destroying, dismantling, unplugging or otherwise disabling the Dash Cam.
2. Deliberately blocking, interfering with, or obstructing the view of the Dash Cam, such as placing clothing items, tape, etc. over the lens or moving its position.
3. In addition, the conduct of a driver, as captured on the Dash Cam, can subject a driver to discipline based on the specific nature and severity of the conduct, up to and including suspension or termination of employment.

7. DRIVER-EMPLOYEE ACKNOWLEDGEMENT

I hereby acknowledge that I have read and fully understand the foregoing policy on Dash Cams that will be installed in and made part of the trucks and tractors that I will be assigned to operate for Canadian Tire Company in my employment as a driver for CPC Logistics Canada, Ltd., and I hereby consent their use.

Employee Signature

Employee Printed Name

Date